3864

Executive Order

I. Under authority of Article of War No. 45, as amended by an Act of Congress approved June 4, 1920, the Executive Order of December 10, 1920, 3367 prescribing the maximum limits of punishment of soldiers is amended, effective September 1, 1923, by adding to Article III thereof the following section:

> Sec. 3. Within the maximum limits prescribed herein, a sentence of forfeiture will be expressed in even dollars, or if for a period longer than one month, in even dollars per month, based upon the soldier's base pay and pay for length of service. Should the sentence carry a reduction in grade the forfeiture will be based on the pay of the reduced grade.
>
> Each monthly forfeiture will be charged against the monthly pay of the soldier, beginning with the first day of the month in which the sentence is promulgated, and will become and remain a fixed indebtedness to the United States until satisfied.

II. By virtue of the powers in me vested as President of the United States of America, and pursuant to Article 38 of Chapter II of an Act of Congress entitled "An Act to amend an act entitled 'An Act for making further and more effectual provision for the National Defense, and for other purposes' approved June 3, 1916, and to establish military justice" approved June 4, 1920, (41 Stat. 759), I hereby modify as set out in the following changes the rules of procedure in cases before courts-martial and courts of inquiry in the Army of the United States, contained in the Manual for Courts-Martial in force and effect on and after February 4, 1921, and prescribe them as so modified and direct them to be published for the government of all concerned. These changes will be in force on and after September 1, 1923.

Appendix 13. Change Forms 1, 2, 3, 4 and 8 to read as follows:

1. To have ..... dollars of his pay detained.
2. To have ..... dollars per month for ..... months detained.
3. To forfeit ..... dollars of his pay.
4. To forfeit ..... dollars per month for ..... months.
8. To be confined at hard labor, at such place as the reviewing authority may direct, for ..... months and to forfeit ..... dollars per month for a like period.

WARREN G HARDING

THE WHITE HOUSE,
June 11, 1923.

[No. 3864.]

Army Regulations

GOVERNMENT PRINTING OFFICE